

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF DELAWARE**

AZURITY PHARMACEUTICALS, INC.,	)	
	)	
Plaintiff,	)	
	)	C.A. No.
v.	)	
	)	
APPCO PHARMA LLC and SOMERSET	)	
THERAPEUTICS, LLC,	)	
	)	
Defendants.	)	

COMPLAINT FOR PATENT INFRINGEMENT

Plaintiff Azurity Pharmaceuticals, Inc. (“Azurity” or “Plaintiff”), by and through its attorneys, brings this Complaint for Patent Infringement against Defendants Appco Pharma LLC (“Appco”) and Somerset Therapeutics, LLC (“Somerset”) (collectively, “Defendants”), and alleges as follows:

The Nature of the Action

1. This is an action for patent infringement of United States Patent Nos. 11,478,456 (the “’456 patent”), 11,529,333 (the “’333 patent”), and 12,491,179 (the “’179 patent”) (collectively, the “Patents-in-Suit”), arising under the patent laws of the United States, Title 35, United States Code, arising out of the submission by Defendants of Abbreviated New Drug Application (“ANDA”) No. 220352 to the U.S. Food and Drug Administration (“FDA”) seeking approval of a generic version of Azurity’s oral suspension formulation that is the subject of New Drug Application (“NDA”) No. 214273, hereinafter referred to as Azurity’s “ZONISADE[®] product.” Azurity seeks all available relief under the patent laws of the United States, 35 U.S.C. § 100 *et seq.*, and other applicable laws for Defendants’ infringement of the Patents-in-Suit.

The Parties

2. Azurity is a corporation organized and existing under the laws of the State of Delaware, with a principal place of business at 8 Cabot Road, Suite 2000, Woburn, Massachusetts 01801.

3. On information and belief, Appco is a corporation organized and existing under the laws of the State of Delaware, having a principal place of business at 262 Old New Brunswick Road, Suite N, Piscataway, NJ 08854. Upon information and belief, Appco has and maintains a registered agent to accept service of process and otherwise perform the functions of a registered agent in Delaware, Corporation Service Company, located at 251 Little Falls Drive, Wilmington, Delaware 19808.

4. On information and belief, Somerset is a corporation organized and existing under the laws of the State of Delaware, having a principal place of business at 300 Franklin Square Drive, Somerset, NJ 08873. Upon information and belief, Somerset has and maintains a registered agent to accept service of process and otherwise perform the functions of a registered agent in Delaware, Incorp Services, Inc., located at 131 Continental Drive, Suite 301, Newark, Delaware 19713.

5. On information and belief, Defendants are in the business of, among other things, developing, manufacturing, and selling generic copies of branded pharmaceutical products for the United States market.

Jurisdiction and Venue

6. This action arises under the patent laws of the United States of America, 35 U.S.C. § 100, *et seq.* and from Defendants' submission of ANDA No. 220833.

7. This Court has subject matter jurisdiction over the action under 28 U.S.C. §§ 1331 and 1338(a) (patent infringement). Relief is sought under 35 U.S.C. § 271(e)(2).

8. On information and belief, this Court has personal jurisdiction over Appco because of, among other things, Appco's persistent and continuous contacts with Delaware. Appco has purposefully availed itself of the benefits and protections of Delaware's laws such that it should reasonably anticipate being haled into court here. On information and belief, Appco regularly and continuously transacts business in Delaware, including by directly or indirectly through one or more agents, developing, manufacturing, marketing, and selling generic pharmaceutical products in Delaware. On information and belief, Appco derives substantial revenue from the sale of those products in Delaware and has availed itself of the privilege of conducting business within Delaware.

9. In addition, Appco is subject to personal jurisdiction in Delaware because, upon information and belief, Appco is a corporation organized and existing under the laws of the State of Delaware, is qualified to do business in Delaware, and has appointed a registered agent for service of process in Delaware. It, therefore, has consented to general jurisdiction in Delaware.

10. On information and belief, this Court has personal jurisdiction over Somerset because of, among other things, Somerset's persistent and continuous contacts with Delaware. Somerset has purposefully availed itself of the benefits and protections of Delaware's laws such that it should reasonably anticipate being haled into court here. On information and belief, Somerset regularly and continuously transacts business in Delaware, including by directly or indirectly through one or more agents, developing, manufacturing, marketing, and selling generic pharmaceutical products in Delaware. On information and belief, Somerset derives substantial revenue from the sale of those products in Delaware and has availed itself of the privilege of

conducting business within Delaware. Somerset has regularly engaged in patent litigation concerning FDA-approved products in this judicial district, has not contested personal jurisdiction in such litigation in this judicial district, and has purposefully availed itself of the rights and benefits of this Court by asserting claims and/or counterclaims in this Court. *See, e.g., AVEO Pharmaceuticals, Inc. v. Somerset Therapeutics, LLC*, No. 1:25-cv-00560-MN, D.I. 11, ¶ 13 (D. Del. July 8, 2025); *Vifor Fresenius Medical Care Renal Pharma Ltd. et al. v. Gland Pharma Limited et al.*, No. 1-25-cv-01382, D.I. 23, ¶ 50 (D. Del. Jan. 30, 2026); *Allergan, Inc. v. Somerset Therapeutics, LLC*, No. 1:16-cv-00392-GMS, D.I. 10, ¶¶ 6-7 (D. Del. Aug. 3, 2016).

11. In addition, Somerset is subject to personal jurisdiction in Delaware because, upon information and belief, Somerset is a corporation organized and existing under the laws of the State of Delaware, is qualified to do business in Delaware, and has appointed a registered agent for service of process in Delaware. It, therefore, has consented to general jurisdiction in Delaware.

12. Additionally, on information and belief, this judicial district is a likely destination of the product that is the subject of ANDA No. 220833.

13. Venue is proper in this Court under 28 U.S.C. §§ 1391 and 1400(b). Somerset is a corporation residing in the state of Delaware and may be sued in the judicial district where it resides. 28 U.S.C. §§ 1400(b).

Azurity's ZONISADE® Product

14. Azurity's ZONISADE® product is an FDA-approved anticonvulsant indicated as adjunctive therapy for the treatment of partial onset seizures in adults and pediatric patients 16 years of age and older.

15. Azurity is the holder of NDA No. 214273.

Patents-In-Suit

16. The '456 patent, entitled "Oral Pharmaceutical Composition Comprising Zonisamide and Process of Preparation Thereof," was duly and legally issued on October 25, 2022. A true and correct copy of the '456 patent is attached to this Complaint as Exhibit A.

17. The face of the '456 patent names Swati Nagar, Sandip P. Mehta, Manish Umrethia, Jayanta Kumar Mandal, and Sandeep Pal as inventors.

18. The '456 patent was duly and legally issued to Azurity as the assignee and Azurity owns all rights, title, and interest in the '456 patent.

19. Pursuant to 21 U.S.C. § 355, the '456 patent is listed in the *Approved Drug Products with Therapeutic Equivalence Evaluations* ("the Orange Book"), in connection with Azurity's ZONISADE[®] product. The use of Azurity's ZONISADE[®] product is covered by at least one claim of the '456 patent.

20. The '333 patent, entitled "Oral Pharmaceutical Composition Comprising Zonisamide and Process of Preparation Thereof," was duly and legally issued on December 20, 2022. A true and correct copy of the '333 patent is attached to this Complaint as Exhibit B.

21. The face of the '333 patent names Swati Nagar, Sandip P. Mehta, Manish Umrethia, Jayanta Kumar Mandal, and Sandeep Pal as inventors.

22. The '333 patent was duly and legally issued to Azurity as the assignee and Azurity owns all rights, title, and interest in the '333 patent.

23. Pursuant to 21 U.S.C. § 355, the '333 patent is listed in the Orange Book in connection with Azurity's ZONISADE[®] product. Azurity's ZONISADE[®] product is covered by at least one claim of the '333 patent.

24. The '179 patent, entitled "Oral Pharmaceutical Composition Comprising Zonisamide and Process of Preparation Thereof," was duly and legally issued on December 9, 2025. A true and correct copy of the '179 patent is attached to this Complaint as Exhibit C.

25. The face of the '179 patent names Swati Nagar, Sandip P. Mehta, Manish Umrethia, Jayanta Kumar Mandal, and Sandeep Pal as inventors.

26. The '179 patent was duly and legally issued to Azurity as the assignee and Azurity owns all rights, title, and interest in the '179 patent.

27. Pursuant to 21 U.S.C. § 355, the '179 patent is listed in the Orange Book in connection with Azurity's ZONISADE[®] product. Azurity's ZONISADE[®] product is covered by at least one claim of the '179 patent.

Infringement by Defendants

28. By letter dated February 24, 2026 (the "Notice Letter"), Defendants notified Azurity that Defendants had submitted ANDA No. 220833 to the FDA pursuant to Section 505(j)(2)(B) of the Federal Food, Drug and Cosmetic Act ("FDCA") (21 U.S.C. § 355(j)(2)(B)(iv)(I) and 21 C.F.R. § 314.95(c)(1)) to obtain approval to engage in the commercial manufacture, use, and sale of a generic version of Azurity's ZONISADE[®] product (the Defendants' "ANDA Product") before the expiration of the Patents-in-Suit.

29. The '456 patent expires on August 18, 2038. The '333 patent expires on August 18, 2038. The '179 patent expires on August 18, 2038.

30. On information and belief, Defendants intend to engage in commercial manufacture, use, and sale of the Defendants' ANDA Product promptly upon receiving FDA approval to do so.

31. On information and belief, Defendants are seeking approval to engage in the commercial manufacture, use, and sale of the Defendants' ANDA Product before the expiration of the Patents-in-Suit.

32. By filing ANDA No. 220833, Defendants have necessarily represented to FDA that the Defendants' ANDA Product has the same active ingredients as Azurity's ZONISADE[®] product, has the same route of administration, dosage form, use, and strength as Azurity's ZONISADE[®] product, and is bioequivalent to Azurity's ZONISADE[®] product.

33. The Notice Letter contained an offer of confidential access ("Defendants' Offer") to certain portions of ANDA No. 220833. Defendants requested that Azurity accept the Defendants' Offer before receiving access to any portion of the Defendants' ANDA. However, the Defendants' Offer contained unreasonable restrictions that differ materially from restrictions found under protective orders, including but not limited to, for example, D. Del. Local Rule 26.2. *See, e.g., In re Cyclobenzaprine Hydrochloride Extended-Release Capsule Pat. Litig.*, 693 F. Supp. 2d 409, 416-17 (D. Del. 2010) (finding that patentee was not required to accept pre-suit Offer of Confidential Access to ANDA under terms it considered "unreasonable"); *see also In re Entresto (Sacubitril/Valsartan) Pat. Litig.*, C.A. No. 20-md-2930-RGA, 2022 WL 2304116, at *2 (D. Del. June 27, 2022) (in denying motion for fees, "credit[ing] [patentee's] argument that it believed attempting to negotiate reasonable terms for access to [the] ANDA within the 45-day window prior to filing suit would have been fruitless"). The Defendants' Offer's unreasonable restrictions also included a restriction on outside counsel with access from continuing to perform "any FDA counseling, litigation or other work before or involving the FDA relating to zonisamide." *See, e.g., Avion Pharms., LLC v. Granules Pharms., Inc.*, C.A. No. 20-898-LPS, 2021 WL 1785580, at *3 (D. Del. May 5, 2021) (explaining that "[b]ecause there is little risk of 'inadvertent'

disclosure of confidential materials to the FDA, requests for regulatory bars are routinely denied in this district”). The Defendants’ Offer contained similarly unreasonable restrictions on outside counsel with access from “enga[ing], directly or indirectly, in patent prosecution or post-grant patent office proceedings for Zonisade[®] oral suspension or any product containing zonisamide.” *See, e.g., id.* (rejecting proposed prosecution bar that was “overbroad”).

CLAIMS FOR RELIEF

Count I — Infringement of the ’456 Patent Under 35 U.S.C. § 271 (e)(2)(A)

34. Azurity incorporates each of the preceding paragraphs as if fully set forth herein.

35. Defendants submitted or caused the submission of ANDA No. 220833 to FDA under section 505(j) of the FDCA to obtain approval to engage in the commercial manufacture, use, offer for sale, sale, or importation of the Defendants’ ANDA Product throughout the United States before the expiration of the ’456 patent. By submitting the ANDA, Defendants have committed an act of infringement of one or more claims of the ’456 patent under 35 U.S.C. § 271(e)(2)(A).

36. On information and belief, if Defendants’ ANDA No. 220833 is approved by FDA, the commercial manufacture, use, offer to sell, or sale within the United States, and/or importation into the United States of the Defendants’ ANDA Product will constitute acts of infringement, either literally or under the doctrine of equivalents, of the ’456 patent under 35 U.S.C. § 271(a)-(c) unless enjoined by the Court.

37. On information and belief, Defendants had actual and constructive knowledge of the ’456 patent prior to filing ANDA No. 220833 and was aware that filing this ANDA with FDA constituted an act of infringement of the ’456 patent. In addition, on information and belief, Defendants had specific intent to infringe the ’456 patent when it filed ANDA No. 220833.

Moreover, there are no substantial non-infringing uses for the Defendants' ANDA Product other than as the pharmaceutical claimed in the '456 patent.

38. The commercial manufacture, use, offer for sale, sale, and/or importation of the Defendants' ANDA Product in violation of Azurity's patent rights will cause irreparable harm to Azurity for which damages are inadequate.

Count II — Infringement of the '333 Patent Under 35 U.S.C. § 271(e)(2)(A)

39. Azurity incorporates each of the preceding paragraphs as if fully set forth herein.

40. Defendants submitted or caused the submission of ANDA No. 220833 to FDA under section 505(j) of the FDCA to obtain approval to engage in the commercial manufacture, use, offer for sale, sale, or importation of the Defendants' ANDA Product throughout the United States. By submitting the ANDA, Defendants have committed an act of infringement of the '333 patent under 35 U.S.C. § 271(e)(2)(A).

41. On information and belief, if Defendants' ANDA is approved by FDA, the commercial manufacture, use (in accordance with and as directed by Defendants' proposed labeling for Defendants' ANDA Product), offer to sell, or sale within the United States, and/or importation into the United States of the Defendants' ANDA Product will constitute acts of infringement, either literally or under the doctrine of equivalents, of the '333 patent under 35 U.S.C. § 271(a)-(c) unless enjoined by the Court.

42. On information and belief, Defendants had actual and constructive knowledge of the '333 patent prior to filing ANDA No. 220833 and was aware that filing this ANDA with FDA constituted an act of infringement of the '333 patent. In addition, on information and belief, Defendants had specific intent to infringe the '333 patent when it filed ANDA No. 220833.

Moreover, there are no substantial non-infringing uses for the Defendants' ANDA Product other than as the pharmaceutical claimed in the '333 patent.

43. The commercial manufacture, use, offer for sale, sale, and/or importation of the Defendants' ANDA Product in violation of Azurity's patent rights will cause irreparable harm to Azurity for which damages are inadequate.

Count III — Infringement of the '179 Patent Under 35 U.S.C. § 271 (e)(2)(A)

44. Azurity incorporates each of the preceding paragraphs as if fully set forth herein.

45. Defendants submitted or caused the submission of ANDA No. 220833 to FDA under section 505(j) of the FDCA to obtain approval to engage in the commercial manufacture, use, offer for sale, sale, or importation of the Defendants' ANDA Product throughout the United States before the expiration of the '179 patent. By submitting the ANDA, Defendants have committed an act of infringement of one or more claims of the '179 patent under 35 U.S.C. § 271(e)(2)(A).

46. On information and belief, if Defendants' ANDA No. 220833 is approved by FDA, the commercial manufacture, use, offer to sell, or sale within the United States, and/or importation into the United States of the Defendants' ANDA Product will constitute acts of infringement, either literally or under the doctrine of equivalents, of the '179 patent under 35 U.S.C. § 271(a)-(c) unless enjoined by the Court.

47. On information and belief, Defendants had actual and constructive knowledge of the '179 patent prior to filing ANDA No. 220833 and was aware that filing this ANDA with FDA constituted an act of infringement of the '179 patent. In addition, on information and belief, Defendants had specific intent to infringe the '179 patent when it filed ANDA No. 220833.

Moreover, there are no substantial non-infringing uses for the Defendants' ANDA Product other than as the pharmaceutical claimed in the '179 patent.

48. The commercial manufacture, use, offer for sale, sale, and/or importation of the Defendants' ANDA Product in violation of Azurity's patent rights will cause irreparable harm to Azurity for which damages are inadequate.

PRAYER FOR RELIEF

Azurity respectfully requests the following relief:

- a) A judgment that Defendants have infringed the '456, '333, and '179 patents under 35 U.S.C. § 271(e)(2)(A) by submitting ANDA No. 220833 under Section 505(j) of the FDCA, and that Defendants' making, using, offering to sell, or selling in the United States or importing into the United States the Defendants' ANDA Product will infringe one or more claims of the '456, '333, and '179 patents;
- b) A finding that the '456, '333, and '179 patents are valid and enforceable;
- c) An order under 35 U.S.C. § 271(e)(4)(A) that the effective date of any FDA approval of ANDA No. 220833 shall be a date which is not earlier than the latest expiration date of the '456, '333, and '179 patents, as extended by any applicable periods of exclusivity;
- d) An order under 35 U.S.C. § 271(e)(4)(B) permanently enjoining Defendants, their subsidiaries, parents, officers, agents, servants, employees, licensees, representatives, and attorneys, and all other persons acting or attempting to act in active concert or participation with it or acting on its behalf, from engaging in the commercial manufacture, use, offer to sell, sale, and/or importation into the United States, of any drug product the use of which is covered by the '456, '333, and '179 patents, including the Defendants' ANDA Product;

e) A finding that this is an exceptional case under 35 U.S.C. § 285, and that Azurity be awarded reasonable attorneys' fees and costs; and

f) An award of any such other and further relief as the Court may deem just and proper.

Respectfully submitted,

POTTER ANDERSON & CORROON LLP

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By: /s/ David E. Moore

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